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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,

Respondents.

Case No. 26CV191136

REPLY IN SUPPORT OF DEMURRER BY RESPONDENTS GERARDO SERRATO, GARY PAUL, AND ERIC DUTRA TO PETITION FOR WRIT OF MANDATE; NOTICE OF JOINDER

Date: September 18, 2026
Time: 9:00 a.m.
Dept: 25
Judge: The Honorable Jenna M. Whitman
Trial Date: None Set
Action Filed: May 29, 2026

Reservation Number: 487924635411

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NOTICE OF JOINDER TO CALIFORNIA HIGHWAY PATROL'S REPLY IN SUPPORT OF CHP'S DEMURRER

TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that Respondents Gerardo Serrato ("Capt. Serrato"), Gary Paul ("Lt. Paul"), and Eric Dutra ("Sgt. Dutra") (collectively, the "Individual Respondents" or "CHP Officers") hereby join in Respondent California Highway Patrol's ("CHP") Reply in support of its Demurrer to the Petition for Writ of Mandate ("CHP's Reply") as to all causes of action in the petition on the ground that the petition does not state facts sufficient to constitute a cause of action. (*See* Code Civ. Proc. § 430.10, subd. (e).) In support of their Joinder, the Individual Respondents (a) adopt the points and authorities on these arguments filed in support of CHP's Reply, incorporating them herein by this reference; and (b) submit additional points and authorities in support of their Reply in support of their Demurrer to the Petition for Writ of Mandate.

The arguments described in CHP's Reply are relevant to the defenses and demurrers of Capt. Serrato, Lt. Paul, and Sgt. Dutra because the basis for Petitioner's requested relief, as articulated in his petition, is the same as to all Respondents, including the Individual Respondents. Further, the relief sought by CHP would benefit Capt. Serrato, Lt. Paul, and Sgt. Dutra, as Petitioner alleges that all three are "certifying official[s]" within the meaning of Penal Code section 679.10(b).

For these reasons, Capt. Serrato, Lt. Paul, and Sgt. Dutra join in CHP's Reply in support of its Demurrer to the Petition for Writ of Mandate as to all causes of action in the petition, and adopt the points and authorities filed in support of CHP's Reply.

[signature on following page]

Dated: August 21, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General

/s/ *Vanessa Ing*
VANESSA ING
Deputy Attorney General
Attorneys for Respondents Gerardo Serrato, Gary Paul, and Eric Dutra

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

The Court should sustain the demurrers by Respondents Gerardo Serrato, Gary Paul, and Eric Dutra (collectively, the "Individual Respondents" or "CHP Officers") to the petition for writ of mandate. For the reasons articulated in Respondent California Highway Patrol's ("CHP") demurrer to the petition for writ of mandate, and CHP's reply in support of its demurrer, each of Petitioner's four causes of action fails to state facts sufficient to constitute a cause of action. *See* Respondent CHP's Demurrer to Petition for Writ of Mandate; *see also* CHP's Reply in support of Demurrer to Petition for Writ of Mandate.

Further, Petitioner has failed to state facts sufficient to allege that either Sgt. Dutra or Lt. Paul is a "certifying official" within the meaning of Penal Code section 679.10(b). Therefore, the CHP Officers respectfully request that the Court sustain the Individual Respondents' demurrers and dismiss this action against them without leave to amend.

II. ARGUMENT

A. Petitioner Has Waived Any Objection to the Joinders of Respondents Gerardo Serrato, Gary Paul, or Eric Dutra.

As an initial matter, Petitioner made no objection to the CHP Officers joining in CHP's demurrer arguments. Thus, to the extent that Petitioner objects or intends to object to the CHP Officers' incorporation by reference of all points and authorities filed in support of CHP's Demurrer, Petitioner has waived such objections and should not be permitted to raise them.

B. Petitioner Has Failed to State Facts Sufficient to Allege that Either Lt. Paul or Sgt. Dutra is a "Certifying Official" Within the Meaning of Penal Code section 679.10(b).

Petitioner is mistaken that the Court must accept as true his bare legal conclusions that Lt. Paul and Sgt. Dutra are "certifying official[s]" within the meaning of Penal Code section 679.10(b). A court does *not* accept as true "contentions, deductions, or conclusions of fact or law in that pleading." (*Yvanova v. New Century Mortg. Corp.* (2016) 62 Cal.4th 919, 924.) Section 679.10(b) provides that a "certifying official" is: (1) the head of the certifying entity; (2) a person in a supervisory role who has been specifically designated by the head of the certifying entity to

issue Form I-918 Supplement B certifications on behalf of that agency; (3) a judge; and (4) any other certifying official defined under Section 214.14(a)(2) of the Title 8 of the Code of Federal Regulations. (*See* Penal Code § 679.10(b)(1), (b)(2), (b)(3), (b)(4).)

At most, Petitioner alleges that Lt. Paul "is a CHP supervisory official with responsibility for processing the certification request" who "acknowledged receipt" of Petitioner's certification request and was identified as the point of contact for "additional questions." (Pet., ¶ 15.) But nowhere in the petition does it state that Lt. Paul was the head of the certifying entity (i.e., the head of CHP) or that he had been specifically designated by CHP to issue a Form B certification on behalf of CHP. And were Petitioner now to say so, the April 20, 2026 Form B certification denial letter, which was signed by Capt. Serrato, would belie such assertions. (Pet., ¶ 14; *id.*, Ex. 1.) Indeed, to infer that Lt. Paul was the head of CHP or that he had been specifically designated by CHP to issue a Form B certification based on these allegations is not reasonable, and the Court is not obligated to make such an inference. It does not reasonably follow that a CHP officer who received and processed a certification request and serves as the point-of-contact for additional questions is the "head" of CHP, or has the authority to approve and issue the certification.

Similarly, Petitioner alleges that Sgt. Dutra was "the assigned investigator and designated recipient on the Supplement B," to whom Petitioner submitted his certification request. (Pet., ¶ 16.). But again, nowhere in the petitioner does it state that Sgt. Dutra was the head of CHP or that he had been specifically designated by CHP to issue a Form B certification on behalf of CHP. Petitioner is simply wrong that the demurrer standard requires inferring from allegations that Sgt. Dutra had been assigned to investigate Petitioner's complaint and received Petitioner's Form B certification request that Sgt. Dutra *also* had been specifically designated to issue said certification on behalf of CHP. Again, it does not reasonably follow that a CHP officer who was assigned to investigate Petitioner's complaint and who received Petitioner's certification request is the "head" of CHP, or has the authority to approve and issue the certification. Further, if Petitioner were to amend his allegations to so state, those allegations would be contradicted by the April 20, 2026 Form B certification denial letter signed by Capt. Serrato.

III. CONCLUSION

For these reasons, because Petitioner cannot cure the defects identified above, the CHP Officers request that this Court sustain their demurrers without leave to amend.

Dated: August 21, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
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Supervising Deputy Attorney General

/s/ *Vanessa Ing*
VANESSA ING
Deputy Attorney General
Attorneys for Respondent
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DECLARATION OF SERVICE BY E-MAIL and U.S. MAIL

Case Name: ***Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al.***
Case No.: **26CV191136**

I declare:

I am employed in the Office of the Attorney General, which is the office of a member of the California State Bar, at which member's direction this service is made. I am 18 years of age or older and not a party to this matter. My business address is: 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004. My electronic service address is Melissa.Mendiola@doj.ca.gov. I am familiar with the business practice at the Office of the Attorney General for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at the Office of the Attorney General is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

On August 21, 2026, I served the attached:

- **REPLY IN SUPPORT OF DEMURRER BY RESPONDENTS GERARDO SERRATO, GARY PAUL, AND ERIC DUTRA TO PETITION FOR WRIT OF MANDATE; NOTICE OF JOINDER**

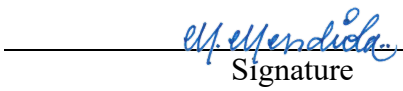
by transmitting a true copy via electronic mail. In addition, I placed a true copy thereof enclosed in a sealed envelope, in the internal mail system of the Office of the Attorney General, addressed as follows:

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
E-Mail: bnn.cdl@gmail.com

Petitioner, In Pro Per

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on August 21, 2026, at San Francisco, California.

M. Mendiola
Declarant


Signature

SA2026303341